

- (i) a railway servant qualified to vote at such election may exercise his right to vote, but where he does so, he shall give no indication of the manner in which he proposes to vote or has voted;
- (ii) a railway servant shall not be deemed to have contravened the provisions of this sub-rule by reason only that he assists in the conduct of an election in the performance of a duty imposed on him by or under any law for the time being in force.

Explanation. – The display by a railway servant on his person, vehicle or residence of any electoral symbol shall amount to using his influence in connection with an election within the meaning of this sub-rule.

Railway Ministry's decision. – (1) Railway servants wishing to join the Bharat Sevak Samaj should obtain prior permission from the Head of the Department. This permission will not, however, absolve them from the observance, at all times, of the rules and instructions relating to the conduct and behaviour of the Railway servant.

(E (D & A) 64 GS1 dot. 27-05-1964.)

Railway Ministry's decision. – (2) The Railway servants should not only be impartial but they should appear to be impartial in relation to the elections. They should not take part in any election campaign nor should they canvass. They should always take scrupulous care not to lend their names, official position of authority to assist one group as against another. Any disregard of these instructions will be considered as serious act of indiscipline. Their attention is drawn to the provisions in section 134 – A of the Representation of the People Act, 1951 which reads as under:

If any person in the service of the Government, acts as an election agent or a polling agent or a counting agent of a candidate at an election he shall be punishable with imprisonment for a term which may extend upto 3 months or with fine or with both.

(E (D & A) 66 GS1-15 dt. 27-12-66)

Railway Ministry's decision. —(3) Political neutrality of Railway servants—It is essential that Railway servants should not only maintain political neutrality but should also appear to do so and they should not participate in the activities of, or associate themselves with any organization in respect of which there is the slightest reason to think that the organization has a political aspect or with organisations banned by the Government.

(E (D & A) 69 GS1-25 dt. 31-1-1970).

(NS Policy/19 dt. 11-3-1976).

6. Joining of Associations or Unions by Railway Servants. – No railway servants shall join, or continue to be a member of an association or union the objects or activities of which are prejudicial to the interests of the sovereignty and integrity of India or public order or morality.

Note. – It is not permissible for a gazetted railway servant to join any association of non-gazetted railway servant like a Railway Employees Union,. When a non-gazetted railway servant who is a member of a Railway Employees' Union is promoted to gazetted rank, either in an officiating or permanent capacity he shall resign his membership of such Union. If, however, the officer concerned satisfies the General Manager of the railway concerned that by such resignation he will lose financially or otherwise under any beneficent scheme organized by such Union such

as death or accident insurance, he may be permitted to continue as an ordinary member, but not as office bearer or representative, of that Union. The responsibility for satisfying the General Manager in this respect will rest with the officer concerned.

7. Demonstration. —No railway servant shall engage himself or participate in any demonstration which is prejudicial to the interests of the sovereignty and integrity of India, the security of the State, friendly relations with foreign states, public order, decency or morality, or which involves contempt of court, defamation or incitement to an offence.

Railway Ministry's decision. — (1) Where peaceful and orderly meetings or demonstrations are held during the lunch interval without obstructing in any manner the free passage to and from the office, there would be no objection to the holding of such meetings or demonstrations nor would the participating staff render themselves liable to disciplinary action thereby. The same position will apply in respect of peaceful and orderly meeting and demonstration during half an hour interval prior to the start of working hours and the half an hour interval succeeding the close of working hours.

Railway Ministry's decision. —(2) The position regarding the scope of this Rule is clarified as under:

- (i) Demonstration, meetings and processions, which are orderly and peaceful and are held outside office premises and outside working hours, should not be interfered with.
- (ii) The wearing of badges while at work should not be interfered with unless the badges have inscriptions or slogans which may offend against the interests of the sovereignty and integrity of India, the security of the State, friendly relations with foreign states, public order, decency or morality or which may amount to contempt of court, defamation or incitement to an offence. The colour of the badge or arm band should not be considered in any case.
- (iii) Demonstration or the raising of slogans or other such disorderly conduct should not be permitted within office premises and disciplinary proceedings should be started against those found indulging in such action within office premises.

(No. E(D & A) 63 GS1-3 dt. 27-4-1964.)

Railway Ministry's decision.—(3) It will be in order to take disciplinary action in respect of demonstration anywhere, even far away from office premises and at any time even on a holiday , resorted to by a railway servant, even in the capacity of a Trade Union worker, if that activity could be proved to be one falling within the prohibitive activities listed in this rule.

(No. E(L)66 UT 1-79 dt. 12-1-1966.)

Railway Ministry's decision. — (4) Peaceful and orderly meetings and demonstrations held during lunch intervals or during half an hour interval prior to the start of working hour and the half an hour interval succeeding the close of the working hours, without obstructing in any manner the free passage to and from the office do not infringe the provisions under this rule.

(No. E(L) 77 UT 1-79 dot. 26/28-7-1967.)